



News

Trump’s DOJ Begg Judge To Kill Epstein Files Case After Court Loss in Phang Lawsuit

The Justice Department now argues that journalist Katie Phang cannot use federal administrative law to force further disclosure.

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Attorney General Todd Blanche moved on October 1 to end journalist Katie Phang’s Epstein-files lawsuit at the pleading stage, asking U.S. District Judge Emmet G. Sullivan to rule that she cannot prevail as a matter of law.

Phang has been providing updates on her case exclusively on her podcast, [Sidebar with Katie Phang](#).

The move comes after Sullivan granted Phang preliminary-injunction relief in June, rejecting the Trump administration’s attempt to keep the case from moving forward after the Justice Department declared that its Epstein-files release was complete. The department had

same opinion records both the declaration and the ruling.

Blanche’s latest filing attacks the same core questions that have already put his department under a federal judge’s supervision: whether the Justice Department can withhold covered records, retain disputed redactions and avoid explaining each secrecy decision.

Phang filed suit under the Administrative Procedure Act, alleging that Blanche’s handling of the records violated the Epstein Files Transparency Act. Her lawsuit does not depend on Congress creating a standalone private right of action inside that statute.

That distinction now sits at the center of Blanche’s effort to shut the case down.

Blanche Wants the Court To Treat Disclosure as Congress’s Problem

Blanche argues that Congress left enforcement to political oversight and reporting requirements, not private litigation. He also argues that the statute’s structure blocks Phang’s Administrative Procedure Act claims and that she lacks Article III standing.

Phang’s answer is straightforward: the Justice Department took final agency action when it decided what to release, what to black out and what to withhold. Those decisions, she argues, are reviewable under the APA.

Congress ordered the attorney general to publish all unclassified Epstein-related records held by the Justice Department, the FBI and U.S. attorneys’ offices within 30 days of enactment. The law bars withholding on the basis of embarrassment, reputational harm or political sensitivity. The statute permits only five narrow categories of withholding or redaction.

It also requires a written justification for every redaction, published in the Federal Register and submitted to Congress.

The Trump administration’s position is that Congress supplied oversight mechanisms but no pathway for Phang to enforce the disclosure mandate herself. Phang argues that reading would let the Justice Department decide compliance for itself while the people seeking records are sent elsewhere.

“My lawsuit seeks the entirety of the Epstein files.”

Katie Phang, Journalist And Plaintiff

The court has already found enough merit in Phang’s claims to grant preliminary relief. Blanche now wants Sullivan to end the case before the broader dispute over the

What the Justice Department Called Compliance Left the Fight Alive

The record shows why that fight did not end with the January release. In its June opinion, the court noted that the department made productions on December 19, 20, 22 and 23, 2025, and again on January 30, 2026.

But the same opinion states that none of those productions came with a privilege log, even though the department had said one would follow. The court also noted that the Justice Department invoked deliberative-process, work-product and attorney-client privileges beyond the statute's listed grounds for withholding. Sullivan's opinion laid out that gap between the department's compliance announcement and the records it still had not fully explained.

That is the problem Blanche's motion cannot erase: a disclosure law with a deadline became an ongoing court fight because the department's release did not settle what it withheld or why.

Phang argues that FOIA is not an adequate substitute. FOIA carries its own exemptions, while the Epstein Files Transparency Act created a separate disclosure mandate with a much narrower list of permitted reasons for secrecy.

Sullivan's preliminary-injunction decision recognized that difference. The court found that Phang likely could not obtain the unredacted material she sought through FOIA because FOIA exemptions would likely block it.

Blanche nevertheless argues that FOIA is the proper vehicle for citizens seeking information about their government.

The Justice Department cannot call FOIA an adequate remedy while the statute Congress passed imposes separate disclosure obligations that FOIA does not replicate.

The Fight Now Reaches Records the DOJ Still Refuses To Explain

Phang says the department has not merely redacted material from released files. She alleges that it has withheld records altogether, failed to publish the required justification for each redaction and declined to review or produce responsive foreign-language documents.

The law contains no exception for foreign-language materials. It directs the attorney general to release all covered unclassified records and identifies the limited categories that may be withheld.

not give the Justice Department a blank check to conceal every identity or document it chooses.

Phang also disputes Blanche’s claim that she has alleged only a generalized grievance. She says the redactions and withheld records directly impair her reporting work and prevent scrutiny of the government’s compliance with a federal disclosure law.

And the pressure on the Justice Department is not limited to Phang’s case.

New Mexico Attorney General Raúl Torrez sued the Justice Department in August for access to unredacted Epstein investigative materials connected to the state’s Zorro Ranch criminal investigation. The state says federal officials’ refusal to provide the records is obstructing its ability to investigate potential crimes, identify witnesses and pursue justice for survivors. [New Mexico’s complaint announcement](#) names Blanche and the department as defendants.

Congresswoman Teresa Leger Fernández and Torrez have also backed the proposed Epstein Files Transparency Act II, which would strengthen access and enforcement avenues for survivors, state attorneys general and prosecutors. The bill remains a proposal; it does not change the disclosure obligations the Justice Department already faces under the existing law. [New Mexico’s August 12 release](#) makes that divide plain.

A Motion Cannot Rewrite the Law Congress Already Passed

A Rule 12(c) motion for judgment on the pleadings tests whether a case can survive on the pleadings after they close. At that stage, the court must assess the legal sufficiency of the claims; it is not a license for an agency to convert its preferred reading of a transparency law into the final word.

Blanche’s motion gives Sullivan another chance to decide whether the Justice Department’s remaining redactions and withholdings comply with the law. It does not undo the statute’s deadline, its ban on secrecy for embarrassment or political sensitivity, or its command that the department justify redactions.

The department said it had complied on January 30. It is now October 3, and the attorney general is still asking a federal judge to end the case demanding an accounting for what remains behind the black boxes.

Katie Phang Asks What Happens When Government Withholds Records 78/100

Katie Phang Says EFTA Requires Foreign-Language Records Too 85/100

Katie Phang Says DOJ’s Redaction Disclosure Lacks

But the unanswered demands have not changed: which records did the Justice Department withhold, which redactions did it make, and when will it provide the explanations Congress required? Survivors, investigators and the public are still waiting.

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